

EMPLOYMENT SEPARATION AGREEMENT AND RELEASE

NOTICE: BECAUSE EXECUTION OF THIS AGREEMENT AND RELEASE WILL AFFECT YOUR LEGAL RIGHTS, YOU SHOULD THOROUGHLY REVIEW AND UNDERSTAND THE TERMS, CONDITIONS AND EFFECT OF THIS AGREEMENT. YOU HAVE THE RIGHT TO CONSIDER THIS AGREEMENT AND RELEASE FOR TWENTY-ONE (21) CALENDAR DAYS AND TO CONSULT WITH AN ATTORNEY BEFORE YOU SIGN IT. HOWEVER, YOU MAY SIGN THIS AGREEMENT AND RELEASE PRIOR TO THE END OF THAT PERIOD. IF YOU DO NOT SIGN THE AGREEMENT AND RELEASE WITHIN THE TWENTY-ONE (21) CALENDAR DAY TIMEFRAME, THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT'S OFFER, I.E. THE PROPOSED TERMS AS SET FORTH BELOW, SHALL EXPIRE. UPON SIGNING THIS AGREEMENT AND RELEASE, YOU WILL BE BOUND LEGALLY TO THE TERMS SET FORTH BELOW. FINALLY, YOU HAVE SEVEN (7) DAYS AFTER SIGNING THE AGREEMENT AND RELEASE TO REVOKE IT, IN WHICH CASE IT WILL NOT BE BINDING UPON YOU OR THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT.

This Employment Separation Agreement ("Agreement") is made and entered into this ___ day of May, 2020, by and among Dr. Gina Symsek ("Dr. Symsek") and the Board of Education of the Brecksville-Broadview Heights City School District (the "Board"), by and through its duly-authorized Board President, Kathleen Mack, Superintendent Joelle Magyar and Treasurer Craig Yaniglos (collectively hereinafter referred to as the "Parties").

WHEREAS, Dr. Symsek and the Board, in furtherance of their respective interests, have determined to sever the existing employment relationship between Dr. Symsek and the Board;

WHEREAS, Dr. Symsek has opted to resign from her current contract with the Board as the Director of Pupil Services, effective as of July 31, 2020, in order to retire; and

WHEREAS, the Parties recognize the severance of any employment relationship may give rise to dispute and wish to amicably resolve any and all issues that may otherwise exist between them and have determined a release of claims is necessary to effectuate that goal.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, Dr. Symsek and the Board agree as follows:

1. Dr. Symsek shall resign from any and all contracts, including but not limited to administrative and continuing contracts, with the Board, effective July 31, 2020. Pursuant to the Agreement, and concurrent with its execution, Dr. Symsek shall submit a binding and irrevocable letter indicating her intent to resign, which is **Exhibit A** attached hereto and incorporated herein by reference, indicating an effective date of the end of the day on July 31, 2020. Dr. Symsek shall immediately tender her irrevocable resignation to the Superintendent, who shall accept it upon receipt. In consideration for

the mutual commitments herein, the Board shall receive and vote upon to accept Dr. Symsek's resignation.

2. In consideration of Dr. Symsek's acceptance of the terms of this Agreement, the Board shall pay Dr. Symsek her contracted salary for her current employment contract with the Board, through July 31, 2020, consistent with the terms of said current contract and pursuant to standard payroll practices.
3. In consideration of Dr. Symsek's acceptance of the terms of this Agreement, the Board shall pay Dr. Symsek for her accrued but unused vacation days, personal days, and non-contact days, and payment shall be calculated based on Dr. Symsek's current per diem rate, less applicable taxes and withholdings. This payment shall be made in a lump sum payment no later than July 31, 2020.
4. In consideration of Dr. Symsek's acceptance of the terms of this Agreement, and contingent upon Dr. Symsek's retirement from the State Teachers Retirement System ("STRS"), the Board shall pay Dr. Symsek for ninety (90) unused sick days at her current per diem rate, less applicable taxes and withholdings. This payment shall be made in a lump sum payment thirty (30) days after the Board receives written confirmation of Dr. Symsek's application for retirement from the STRS.
5. Dr. Symsek's existing levels of health benefits will end on July 31, 2020. Dr. Symsek shall then be entitled to continuation of coverage under the District's health/medical insurance plan pursuant to any rights she may have under the federal Consolidation Omnibus Budget Reconciliation Act, as amended ("COBRA"), part VI of Subtitle B of Title I of the Employee Retirement Income Security Act of 1974 ("ERISA"), as amended, Internal Revenue Code § 4980(B)(f). Such continuation shall be afforded up to the maximum period provided by law so long as Dr. Symsek submits payments for elected coverage and otherwise complies with conditions of continuation on a timely basis.
6. Other than what is expressly provided for herein, Dr. Symsek shall not be entitled to any other compensation, payment or fringe benefits of any sort whatsoever upon her resignation, regardless of any contract, policy or other rules and regulations. Further, Dr. Symsek expressly waives any claim to entitlement to same.
7. In consideration of Dr. Symsek's acceptance of the terms of this Agreement, should any potential future employer(s) of Dr. Symsek contact the Board, the Board will provide a letter of reference based on the model letter attached hereto as **Exhibit B**. In order to facilitate this response, Dr. Symsek will identify the Superintendent only as the point of contact on any application or related paperwork seeking such a reference from the Board.
8. Dr. Symsek represents and agrees that she is not relying on any representations from the Board, District, or any of their officers, members, agents, employees, or legal

counsel regarding tax treatment of any payments set forth herein, any deferred compensation eligibility or treatment, any STRS contribution eligibility or treatment, or any provision of this Agreement. Dr. Symsek further represents and agrees that she has relied upon her own advisors for the foregoing issues and all issues related to this Agreement. Dr. Symsek hereby waives any claim she has or may have in the future against the Board, District, or any of their officers, members, agents, employees, or legal counsel regarding any negotiation into this Agreement and any claimed representations regarding tax treatment, deferred compensation eligibility, STRS contribution eligibility or treatment, or any provision of this Agreement.

9. The Parties agree that pursuant to her resignation, Dr. Symsek expressly waives any and all rights, whether under Board policy, contract or Ohio law, to any position of employment with the Board. Dr. Symsek further agrees, upon her separation from the Board's employment, not to seek future employment in the District.
10. In consideration of the mutual promises set forth herein, Dr. Symsek, on her own behalf and on behalf of her executors, heirs, administrators, agents, successors, assigns and personal representatives, does agree to **release, hold harmless and forever discharge**, to the fullest extent permitted by law, the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities from any and all causes of action, claims, suits, actions, complaints, demands, damages, expenses (including attorneys' fees and costs actually incurred), and liabilities of any kind, nature or description, whether direct or indirect, in law or in equity, whether now known or unknown, and from continuing effects therefrom, including any and all claims that Dr. Symsek now has or may have as of the date of execution of this Agreement, arising or growing out of, resulting from, or in any way related to the employment of Dr. Symsek by the Board and Dr. Symsek's separation from service. This release includes, without limitation, any and all claims arising under any federal, state, local or common law, including but not limited to any claim in tort, contract or equity, invasion of privacy, retaliation or any claim arising under any equal employment or civil rights law, including but not limited to Title VII of the Civil Rights Act, the Equal Pay Act, the Family and Medical Leave Act ("FMLA"), the Americans with Disabilities Act, the Americans with Disabilities Amendment Act, and the Age Discrimination in Employment Act ("ADEA"), as amended by the Older Workers Benefit Protection Act ("OWBPA").

This release also includes any other claim based on constitutional, statutory, common law or regulatory grounds, which Dr. Symsek, her executors, heirs, administrators, agents, successors, assigns and personal representatives may now have and may now or hereafter assert against the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities, arising or growing out of, resulting from, or in any way related to Dr. Symsek's employment with the Board and the severance of the employment relationship, whether such claims are now known or unknown. This release further includes any other right to recover monetary relief or any other personal relief through any administrative charge or other claim (this waiver shall not affect any right to file such charge).

It is the intention of the parties that the foregoing release be construed as broadly as possible under the law; however, it does not include claims that cannot be waived under law. This Agreement does not affect Dr. Symsek's right to file a charge or otherwise participate in an Equal Employment Opportunity Commission ("EEOC") or Ohio Civil Rights Commission ("OCRC") proceeding insofar as it is required by current EEOC/OCRC regulations, provided, however, that Dr. Symsek is not entitled to any monetary damages in connection with such proceeding(s). Dr. Symsek understands that the Board will assert this Agreement as a full affirmative defense against any claim asserted by her in any forum.

11. To the extent permitted by law, the Board agrees to release Dr. Symsek from any and all causes of action based on the facts or events that occurred prior to execution of this Agreement and any and all claims arising under any federal, state, local or common law, including but not limited to, any claim of breach of contract or any claims in any way related to Dr. Symsek's employment with the Board, and the severance of the employment relationship.
12. The Parties to this Agreement further acknowledge and agree (a) each has had full and complete opportunity to review and examine the terms of this Agreement and to consult with persons of their choice, including legal counsel, prior to execution of this Agreement; (b) each has knowingly and voluntarily executed this Agreement and fully understands the rights, duties and responsibilities imposed by the Agreement, and intending to be bound by the terms of the Agreement; and (c) there are no other terms, conditions or agreements relating to the subject matters herein set forth aside from the provisions contained in this Agreement. Dr. Symsek acknowledges that she is responsible for any costs and fees resulting from her attorney reviewing this Agreement.
13. The Board shall afford, and Dr. Symsek acknowledges receiving, not less than twenty-one (21) calendar days in which to consider this Agreement to ensure that Dr. Symsek's execution of this Agreement is knowing and voluntary. In signing the below, Dr. Symsek expressly acknowledges that she has had at least twenty-one (21) days to consider this Agreement and that her execution of same is with full knowledge of the consequences thereof and is of her own free will. Notwithstanding the fact that the Board has allowed Dr. Symsek twenty-one (21) days to consider this Agreement, in the event Dr. Symsek elects to execute this Agreement prior to the end of such twenty-one (21) day period, by her signature below, Dr. Symsek represents, acknowledges, and agrees that her decision to accept this shortening of the time was knowing and voluntary and was not induced by fraud, misrepresentation, or any threat to withdraw or alter the benefits provided by the Board herein, or by the Board providing different terms to any similarly-situated employee executing a similar agreement prior to the end of such twenty-one (21) day consideration period. Additionally, the Parties agree that any modification to this Agreement as a result of the negotiations of the Parties does not restart the twenty-one (21) day consideration period. In signing below, Dr. Symsek expressly acknowledges that her execution of same is with full knowledge of the consequences thereof and is of her own free will.

14. Both the Board and Dr. Symsek agree and recognize that, for a period of seven (7) calendar days following Dr. Symsek's execution of this Agreement, Dr. Symsek may revoke her release of claims under the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621, et seq., as amended, by providing written notice revoking the same, within this seven (7) day period, to Treasurer / Chief Financial Officer Craig Yaniglos. Such revocation of this Agreement shall be void and of no effect. Should Dr. Symsek revoke this Agreement within this seven (7) day period, Dr. Symsek shall receive only those entitlements or benefits that she would have received regardless of this Agreement.
15. Dr. Symsek agrees the Board may seek to fill her position immediately and that the Board does not need to wait to fill the position until after July 31, 2020 to fill her position.
16. Dr. Symsek understands and acknowledges that she is receiving monies and other consideration that she would not otherwise be entitled to receive by entering into this Agreement, as set forth above, and agrees to the terms set forth above knowingly and voluntarily.
17. Dr. Symsek acknowledges the Board has made no representation whatsoever as to any credits or benefits under either the STRS or the School Employees Retirement System ("SERS") of Ohio or eligibility for the same. Dr. Symsek acknowledges she will consult and rely solely upon her own independent advisors, consultants and attorneys in regard to her eligibility, benefits or effects the payment set forth above would have on contributions or disbursements, if any, under either the STRS or SERS system.
18. This Agreement together with any amendments hereto, shall be binding upon and shall inure to the benefit of the Parties and respective successors, assigns, heirs, and personal representatives, except that the rights and benefits of Dr. Symsek under this Agreement are personal in nature and may not be assigned without prior consent of the Board.
19. The Parties commit and agree this Agreement contains the entire understanding and agreement among the Parties, the terms of the Agreement are intended to be enforced as here written to the maximum extent permitted by law and, if any provision herein is deemed invalid or unenforceable, the remaining provisions shall continue in full force and effect and constitute the Agreement. In addition, the Parties acknowledge there are no understandings among them other than those specifically and particularly set forth in this Agreement. This Agreement shall not be amended or modified in any manner except upon written agreement signed by the Parties.
20. The laws of the State of Ohio govern this Agreement. The parties understand and agree that any dispute arising or growing out of or in any way relating to this Agreement shall be settled by submitting the dispute to the state or federal courts of Ohio.
21. This Agreement may be signed in counterpart originals and may be delivered by facsimile or email (in "pdf" form).

In witness whereof, and intending to be legally bound hereby, the following individuals have affixed their signatures hereto:

FOR DR. SYMSEK:

Date: _____

Dr. Gina Symsek

FOR THE BOARD:

Date: _____

Ms. Kathleen Mack, Board President
Brecksville-Broadview Heights City School
District

Date: _____

Ms. Joelle Magyar, Superintendent
Brecksville-Broadview Heights City School
District

Date: _____

Mr. Craig Yaniglos, Treasurer/CFO
Brecksville-Broadview Heights City School
District

EXHIBIT A

May 26, 2020

To: The Board of Education of the Brecksville-Broadview Heights City School District

From: Dr. Gina Symsek

Please accept this notice of my binding and irrevocable intention to resign from my position as Director of Pupil Services and from any and all contracts with the Board of Education of the Brecksville-Broadview Heights City School District with the separation from employment to be effective at the close of business on July 31, 2020.

Sincerely,

Dr. Gina Symsek

EXHIBIT B

Neutral Reference Letter

To Whom It May Concern:

Dr. Gina Symsek was employed as a full-time administrator with the Brecksville-Broadview Heights City School District from August 1, 2013 through July 31, 2020. Her salary at the time of her resignation was \$134,651.73.

Regards,

[Name of District Representative]